



2025:AHC:217853-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 42735 of 2025

Pawan Kumar Kesharwani

.....Petitioner(s)

Versus

Up Electricity Regulatory Commission Lucknow
And 2 Others

.....Respondent(s)

Counsel for Petitioner(s)	: Arun Mishra, Vijay Pratap Singh
Counsel for Respondent(s)	: Ajay Singh, Narendra Kumar Tiwari

Court No. - 21

HON'BLE MANOJ KUMAR GUPTA, J.
HON'BLE SIDDHARTH NANDAN, J.

1. At the outset, Shri Arun Mishra, learned counsel for the petitioner states that he is not pressing relief no. 2 with regard to claim of the petitioner for off-season discount. The writ petition remains confined to the first relief which is as follows:

"Issue a writ, order or direction in the nature of mandamus commanding respondent No. 3 to enhance the load of petitioner from 80 HP to 140 HP since February 2023 in compliance to Clause 6.9 of U.P. Electricity Supply Code, 2005 and all charges added in the bill in the excess demand penalty may be waived off."

2. Case of the petitioner is that he is being wrongly held liable for excess demand penalty and his application for enhancement of load from 80 HP to 140 HP is not being considered.

3. Shri N.K. Tiwari, learned counsel for the respondent-Electricity Department states that the application of the petitioner filed in this behalf will be considered and decided.

4. Accordingly, without expressing any opinion on merits, the writ petition is **disposed of** with direction to respondent No. 3 to decide the application of the petitioner filed at page-28 of the writ petition within four weeks from the date of communication of the instant order along

with photostat copy of the said application. The levy of excess demand penalty on the petitioner will abide by the decision that would be taken by respondent No. 3 on the application of the petitioner aforesaid.

(Siddharth Nandan,J.) (Manoj Kumar Gupta,J.)

December 4, 2025

Mukesh Kr.